

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the claimant) exercised the right of Access against the GENERAL DIRECTORATE OF POLICE (hereinafter, the respondent) without their request, as stated by the claimant, having received the legally established response. The claimant states that on August 3, 2022, they sent a request for access via email to the email address policianacional.dpd@policia.es, for recordings from surveillance cameras located in the premises of the NATIONAL POLICE at Avenida Blas Infante 14 in Seville, receiving a response on August 22, 2022, informing them that their request was forwarded to the competent department for handling, without having received a subsequent response after the legal deadline had passed. The claimant provides a copy of their request, the email sent, and the response received on August 22, 2022.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claimant's requests were satisfied. Consequently, on May 27, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing. The aforementioned agreement granted the respondent a hearing period, so that within fifteen working days they could present any arguments they deemed appropriate. The respondent justifies their refusal with the following argument: "...The data controller literally communicates the following: 'It has also been noted that the images for which access is requested are linked to police proceedings C.C.C. of July 23 from the Central Inspection of the Guard of Seville, as well as to urgent proceedings D.D.D. from the Court of Instruction No. 19 of Seville and to the General Registry B.B.B. from the Criminal Court No. 15 of Seville, therefore it is not possible to grant direct access to the images, but they will be made available to the competent judicial authority if required.' Likewise, it is indicated that the data controller proceeded to communicate the above by means of a citizen response letter signed by the Secretary General and dated June 6, 2023..."

FOURTH: After examining the document submitted by the respondent, it is forwarded to the claimant, so that within fifteen working days they can formulate any arguments they consider appropriate, and no arguments have been made within the established timeframe.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as handling complaints submitted by a data subject and investigating the reasons for them. Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns them the function of cooperating with that authority.

In accordance with this regulation, prior to the admission for processing of the complaint that gives rise to this procedure, it was forwarded to the respondent for analysis, and they were to respond to this Agency in...

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the period of one month and will prove to have provided the claimant with the due response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

The result of this transfer did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on May 27, 2023, for the purposes provided in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint filed. This admission agreement determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the claimant. Once that period has elapsed, the interested party may consider their complaint accepted.”

It is not deemed appropriate to clarify administrative responsibilities within the framework of a sanctioning procedure, whose exceptional nature implies that, whenever possible, preference is given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure, the guarantees and rights of the claimant are duly restored.

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

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In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The

burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the data controller provides remote access to the data, considering the request fulfilled (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so. Furthermore, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not affect

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negatively affecting the rights and freedoms of others, that is, the right of access will be granted in such a way that it does not affect third-party data.

Organic Law 7/2021, of May 26, on the protection of personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and the execution of criminal sanctions establishes, in its article 22, the right of access that corresponds to the data subject regarding their personal data.

Article 22. Right of access of the data subject to their personal data.

1. The data subject shall have the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed. In the event that processing is confirmed, the data subject shall have the right to access such personal data, as well as the following information:

- a) The purposes and legal basis of the processing.
- b) The categories of personal data concerned.
- c) The recipients or categories of recipients to whom the personal data have been communicated, in particular, the recipients established in countries that are not members of the European Union or international organizations.
- d) The retention period of the personal data, when possible, or, if not, the criteria used to determine such period.
- e) The existence of the right to request from the data controller the rectification or deletion of personal

data concerning the data subject or the limitation of its processing.

f) The right to lodge a complaint with the competent data protection authority and the contact details of the same.

g) The communication of the personal data subject to processing, as well as any available information about its origin, without revealing the identity of any natural person, especially in the case of confidential sources.

2. When the data controller processes a large amount of information concerning the data subject and the data subject exercises their right of access without specifying whether it refers to all or part of the data, the data controller may require the data subject to specify the request within ten days.

3. The right of access shall be deemed granted if the data controller provides the data subject with a remote, direct, and secure system that permanently guarantees access to all of their personal data. The notification informing the data subject of the procedure initiated through this system will allow the denial of their access request made by other means.

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If remote access does not provide all the information contained in section 1, the data subject shall have the right to request it.

4. When the data subject chooses a means other than that offered which incurs a disproportionate cost, the request will be considered excessive, and the data subject will assume the excess cost that their choice entails. In this case, the data controller is only required to ensure that the satisfaction of the right of access through the proposed means occurs without undue delay. If the data subject does not assume the excess cost, access will be provided through the means initially proposed by the data controller.

For its part, article 24 outlines a series of cases in which this right may be restricted, such as:

a) Preventing the obstruction of inquiries, investigations, or judicial proceedings.

b) Avoiding harm to the prevention, detection, investigation, and prosecution of criminal offenses or to the execution of criminal sanctions.

c) Protecting public safety.

d) Protecting national security.

e) Protecting the rights and freedoms of other persons.

However, it also stipulates that such restriction must be duly communicated to the data subject

"without undue delay, and in any case, within one month from the time they become aware of such restriction, the reasons for it, as well as the possibilities of lodging a complaint with the data protection authority, without prejudice to other judicial actions that may be exercised under the provisions of this Organic Law."

V

Conclusion

In the case analyzed here, the complaining party exercised their right of access and, after the established period according to the aforementioned regulations, did not receive the legally established response.

However, it is noted that during the processing of the complaint that gives rise to this procedure, formulated precisely due to the lack of an adequate response to the request for the exercise of rights, the responding party has provided a response both to the complainant and to this Agency denying the right of access, without such denial being justified in any of the legally established cases.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO GRANT the complaint filed by A.A.A. against the DIRECTORATE GENERAL OF THE POLICE, considering that the provisions of article have been infringed.

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22 of the LO 7/2021 and to urge the GENERAL DIRECTORATE OF POLICE, to, within ten working days following the notification of this resolution, send to the claiming party a certification addressing the requested right or denying it with justification indicating the reasons why the request cannot be granted, in accordance with the provisions established in Article 24 of the aforementioned LO. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe.

SECOND: NOTIFY this resolution to A.A.A. and to the GENERAL DIRECTORATE OF POLICE.

In accordance with the provisions established in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions established in Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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